PREAMBLE OF INDIAN CONSTITUTION

- **The Preamble of the Indian Constitution is based on the Objectives Resolution proposed by Jawaharlal Nehru in 1946.**
- Contents of the objective resolution:
- India is an **independent** and **sovereign republic**.
- India **shall be a union** of the former territories of British India, the Indian States, and other territories outside British India and the Indian States which wish to join the Union.

❖ SOVEREIGN

- India is an independent nation, not a vassal or dominion of any other country.
- People have the highest right to make decisions on internal and external matters. No external force can decide the government of India.
- In 1949, India declared that it would remain a full member of the British Commonwealth and accepted the British Crown as its head of state, but this in no way affects India's sovereignty. India can acquire foreign territory or cede part of its territory to foreign countries.

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❖ SOCIALIST

- The National Congress Party passed a resolution establishing a socialist social model at the 1955 Avadi Conference.
- Wealth is created by society and must be distributed equitably within society. Governments should regulate land and industrial ownership to reduce socioeconomic inequality.
- Even before the term was added by the 42nd Amendment in 1976, the Constitution contained socialist content in the form of certain directive principles of public policy.
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The Indian version of socialism is democratic socialism, not communist socialism. It is a mixture of Marxism and Gandhism, but leans towards Gandhian socialism. Democratic socialism: believes in a mixed economy where public and private sectors coexist.

- Communist socialism: nationalization of all means of production and distribution and abolition of private property. However, the economic reforms of 1991 eroded India's socialist character.

❖ **SECULAR**

- Added by the 42nd Amendment to the Constitution in 1976.
- Citizens have complete freedom to practice any religion. However, there is no formal religion. The government respects all religious beliefs and practices equally. The Constitution not only guarantees freedom of religion, but also guarantees freedom to those who do not practice religion.
- In 1974, the Supreme Court held that although the term "secular state" is not explicitly mentioned in the Constitution, it does not mean that the Framers of the Constitution intended to create a state as provided in Articles 25 to 28. The court held that there was no doubt that the fundamental right to freedom of religion). It was specified in the constitution. Positive concept of secularism → All religions, regardless of their strength, enjoy the same status and support from the state.

❖ **DEMOCRATIC**

- Popular sovereignty → possession of supreme power by the people.
- Direct democracy ⇒ The people exercise supreme power (Switzerland) ⇒ Referendum, initiative, recall, referendum. Indirect democracy: Representatives elected by the people exercise ultimate power.
- The Indian Constitution provides for a representative parliamentary democracy in which the executive is accountable to the legislature for all its policies and actions. Universal adult suffrage, the rule of law, the independence of the judiciary, and the prohibition of discrimination on certain grounds are manifestations of the democratic nature of India's political system.
- The term "democracy" as used in the preamble includes social, political and economic democracy. Social democracy means a period of life that recognizes freedom, equality and fraternity - the union of the Trinity.
- The Supreme Court noted in 1997 that the Constitution provides for the establishment of social and economic democracy.

❖ **REPUBLIC**

- Monarchy = The head of state occupies a hereditary position, for example in the United Kingdom.

- Republic = head of state is always directly or indirectly elected for a particular period of time, such as in the United States.
- India has an elected leader called the President. They are elected through indirect elections for a five-year term.
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Republic means two things. One is to give political sovereignty to the people rather than individuals. There are no privileged classes, so all government jobs are open to all citizens without discrimination.

■ Objective of the Constitution

❖ JUSTICE (3 types PSE)

- The preamble presents social, economic and political aspects through FR and DPSP.
- **Social justice:** equal treatment of all citizens without social distinctions based on caste, color, race, religion, or gender.
- **Economic justice:** non-discrimination between people on the basis of economic factors. It is about eliminating gross inequalities in wealth, income and property.
- Social justice + economic justice = **distributive justice.**
- **Political justice:** All citizens should have equal political rights, equal access to all political offices, and an equal voice in government.
- The concept of justice originates from the Russian Revolution.

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❖ LIBERTY (WTF-BE)

- There are no restrictions on individual activities.
- Provides opportunities for personal growth. The Preamble guarantees freedom of thought, expression, belief, religion and practice through fundamental rights.
- It is essential for the proper functioning of India's democratic system. Freedom does not mean a "license" to do whatever you want, but something you can enjoy within certain limits.
- The concept of freedom is not absolute. The absence of law does not guarantee freedom (as John Locke wrote in his Second Treatise on Civil Government, ``Where there is no law, there is no freedom").
- The idea of freedom is taken from the French Revolution.

❖ EQUALITY

- There are no special privileges for any section of society and adequate opportunities are provided to all without discrimination.

- Everyone is equal before the law. Traditional social inequalities must end. Governments must ensure equal opportunities for all. The preamble addresses three types of equality: civil, political, and economic.
- Civil equality - Articles 14, 15, 16, 17 and 18.
- Political Equality - Article 325 (No person shall be deemed disqualified from appearing on the electoral register on grounds of religion, race, caste or sex) and Article 326 (National and parliamentary elections shall be , conducted on a national basis) with or without adult participation). Vote).
- Article 39 of the DPSP guarantees equal rights to livelihood for men and women and equal pay for equal work.

❖ **FRATERNITY**

- It means a feeling of brotherhood.
- The Constitution encourages this feeling of fraternity through its unique citizenship system. Fraternity must guarantee two things: the dignity of the individual and the unity and integrity of the nation.
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Article 51A states that it is the duty of every citizen to promote harmony and fraternity. "Good faith" was added to the preamble by the 42nd Amendment (1976). • Article 1 → India as a Union of States → No State has the right to secede from the Union.

- K.M. Munshi believed that personal dignity meant not only material improvement, but that each person's personality was sacred.

■ **Preamble as part of the Constitution**

- **Berubari Union Case (1960)**: Where the terms used in a clause are ambiguous or may have more than one meaning, help in interpretation can be taken from the purpose stated in the preamble.

The Supreme Court specifically held that the Preamble was not part of the Constitution.

- **Keshavananda Bharati case (1973):** The Supreme Court overruled its earlier opinion and held that the Preamble is part of the Constitution.

The Constitution must be read and interpreted in the light of the great and noble vision expressed in the Preamble. India's

- **LIC Case (1995):** The Supreme Court once again held that the Preamble is an integral part of the Constitution.

The Preamble was also adopted by the Constituent Assembly, but only after the rest of the Constitution had been adopted. The preamble was included last to ensure consistency with the Constitution adopted by the Constituent Assembly.

Unjust and inapplicable, it is neither a source of nor a prohibition on the power of the legislator.

■ **Amenability of the Constitution**

- The question of whether the Preamble can be amended first arose in the **case** of **Kesavananda Bharati.**
- The Supreme Court ruled that the Preamble is part of the Constitution.
- The preamble may be amended unless the substantive provisions of Article 368 are changed.
- It was amended only once in 1976 by the 42nd Constitutional Amendment Act, and three new words were added to the preamble: **'socialism, secularism and integrity.**

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